

26CHCP00230 26CHCP00230

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 26CHCP00230 Hearing Date: August 6, 2026 Dept: F51

PETITION FOR ORDER

PERMITTING LATE CLAIM AGAINST

GOVERNMENTAL

ENTITY

Los Angeles Superior Court Case

26CHCP00230

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Petition Filed: 6/16/26

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MOVING PARTY: Petitioner Adam Campbell ("Petitioner")

RESPONDING PARTY: Respondent

County of Los Angeles ("Respondent")

NOTICE: OK

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RELIEF REQUESTED: Relief

from the claim filing requirements of California Government Code section 945.4.

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TENTATIVE RULING: The petition is granted. Petitioner to file his complaint with the Court within 30 days.

BACKGROUND

“This Petition is being brought by Petitioner following the late discovery of injuries sustained by Petitioner caused by the medical care provided to him by Respondents in or around December 2024. ... Petitioner did not discover, and in fact could not have discovered the existence, nature, or extent of the injuries caused by Respondents until September 2025, when he was first notified by medical professionals that he had sustained such injuries. This information was therefore first discovered after the expiration of the deadline to file a timely government tort claim.” (Pet. 1:7–13.)

Petitioner asserts that he was placed on a blood thinning medication in 2023, and on 12/17/24, Respondents decided that Petitioner was to discontinue the medication. (Id. at 1:20–2:4.) “Approximately 4 weeks after Mr. Campbell’s December 17, 2024 visit, he was seen in the emergency room at St. John’s Regional Medical Center with a large clot and pulmonary embolism requiring not one, but two thrombectomies that subsequently required several visits over a period of months with interventional radiologist Keval Patel, D.O. at St. John’s Regional Medical Center.” (Id. at 2:12–16.) Petitioner was subsequently seen by various medical providers, but “did not get any definitive answers about the condition of his leg until September 24, 2025, at which time he first discovered that his leg was permanently damaged with post thrombotic syndrome, through Dr. Kanwarpal S. Kahlon, a hematology specialist with UCLA Medical Center.” (Id. at 3:5–8.)

On 6/16/26, Petitioner filed the instant petition for relief. On 7/24/26, Respondent filed its opposition. On 7/30/26, Petitioner filed his reply.

ANALYSIS

Actions brought against government entities are subject to the Government Claims Act, which typically requires written claims for damages against the public entity to be timely presented to that entity for resolution

prior to filing suit. (Gov. Code § 900 et seq.) “A claim relating to a cause of action for death or for injury to person ... shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. (Gov. Code § 911.2, subd. (a).) “When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.” (Gov. Code § 911.4, subd. (a).) Such an application must be presented “within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim.” (Id. at subd. (b).)

“If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4.” (Gov. Code § 946.6, subd. (a).) “The petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.” (Id. at subd. (b).) “The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and ... The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” (Id. at subd. (c)(1).) “Government Code section 946.6 is liberally interpreted; the policy of deciding cases on their merits supports resolving doubts in favor of the application for relief.” (Boas v. County of San Diego (1980) 113 Cal.App.3d 355, 358.)

Here, on 11/7/25, Petitioner submitted a government claim to Respondent, which was later rejected. (Ex. A to Pet.) Thereafter, on 12/4/25, Petitioner served Respondent with an application for permission to present a late claim pursuant to Government Code section 911.4. (Ex. B to Pet.) On 1/15/26, Respondent denied the application. (Ex. C to Pet.)

“Generally speaking, a cause of action accrues at the time when the cause of action is complete with all of its elements. ... An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of

action until the plaintiff discovers, or has reason to discover, the cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806–807 [quotations and citations omitted].) “In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’” (Id. at 808.)

Here, “Petitioner contends that accrual of his medical malpractice cause of action (under C.C.P. § 340.5) was delayed until the injury was discovered. The Petitioner was not aware of the severity or extent of the injury, or that the injury was the likely result of an act or failure to act by the Respondents, until September 24, 2025.” (Pet. 6:1–5; Decl. of Adam Campbell ¶¶ 10–11.) In opposition, Respondent argues that “here, Campbell’s cause of action against the County accrued when he first suspected that someone’s wrongdoing was responsible for the large clot and pulmonary embolism he was diagnosed with at St. John’s Regional Medical Center,” presumably in January 2025. (Opp. 11:21–23.) “Logically, the fact that he was taken off Warfarin only four weeks prior to his diagnosis at St. John’s Medical Center would trigger suspicion of negligence on the part any doctor or entity that discontinued the medication. This is especially true in light of the fact that the purpose of the medication was to prevent the type of medical conditions (i.e., blood clotting) that he was ultimately diagnosed with at St. John’s.” (Id. at 12:5–9.)

Respondent

further argues that “a court lacks authority under Government Code section 946.6 to grant relief on the theory that a claim is actually timely under delayed-discovery accrual.” (Id. at 10:5–8, citing Ngo v. County of Los Angeles (1989) 207 Cal.App.3d 946, 951–952 [“the court in a proceeding under section 946.6 lacks the power to determine questions that should properly be left to a jury.”].) In Ngo, the Second District Court of Appeal found that “an argument that one filed a timely claim is inconsistent with a petition for relief under section 946.6, since such petition necessarily follows the denial of an application for leave to file a late claim ... There is a proper forum for raising the issue of substantial compliance with the claim filing requirements of sections 911.2 and 945.4. One who has a cause of action against a public entity for personal injury or property damage, and who has filed therewith a timely claim substantially complying with the requirements of

section 911.2 and 945.4, should file a complaint against that public entity within the appropriate statutory period and in the appropriate court. The complaint should allege that a timely claim for damages has been filed with the defendant.” (207 Cal.App.3d at 950, quoting *Toscano v. County of Los Angeles* (1979) 92 Cal.App.3d 775, 783.)

As

Respondent notes, the Fourth District Court of Appeal more recently declined to follow *Ngo*, finding that “the *Ngo* approach multiplies legal proceedings unnecessarily, effectively requiring claimants who dispute a public entity’s determination of timeliness to pursue the dual track of both (1) filing a civil lawsuit alleging compliance and (2) applying for relief first from the public agency under section 911.4 and then, if denied, from the court under section 946.6.” (*Simms v. Bear Valley Community Healthcare District* (2022) 80 Cal.App.5th 391, 398.) The *Simms* Court opined that “no doubt, given the split of appellate authority, a ‘careful practitioner’ would take the belt-and-suspenders approach of both filing a complaint alleging timely filing of a claim and filing a claim-relief petition, as case law and practice guides advise.” (*Ibid.*)

However,

according to the *Simms* Court, “if the initial claim was in fact timely, it is not required that such a claimant ‘first petition the appropriate court’ for relief from the claim’s presentation requirement before bringing suit. ... Rather, the claimant could also (or instead) file a complaint alleging that a claim was timely presented to the public entity.” (*Ibid.*) The *Simms* Court further found that a government agency’s notice of rejection “could mislead a claimant into failing to raise actual compliance, having been told that the only possible recourse is obtaining the public entity’s leave to file a late claim or persuading a court to excuse compliance with the claim requirement.” (*Id.* at 398–399.) “We conclude, therefore, that where the analysis does not rest on disputed issues of fact better postponed for determination by a jury, the issue of timely filing of a claim may be determined in a claim-relief proceeding.” (*Id.* at 399 [internal quotations omitted].)

Under the

doctrine of *stare decisis*, superior courts are bound by all published decisions of the Court of Appeal, but where there is a split in authority, the superior court may choose which appellate decision to follow. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456.) Here, in the interest of

justice and judicial economy, this Court elects to adopt the Fourth District Court of Appeal's reasoning in *Simms*. (80 Cal.App.5th 391.) Here, as in *Simms*, Respondent's notice of rejection of Petitioner's application to file a late claim states that "If you wish to file a court action on this matter, you must first petition the appropriate court for an order relieving you from the provisions of Government Code section 945.4 (claims presentation requirement)." (Ex. C to Pet.) To the extent that Petitioner argues that under the delayed discovery rule, his underlying government claim was timely, case law dictates that the proper recourse would be to file a complaint in the appropriate court and allege that the claims requirement has been satisfied. However, as in *Simms*, the Court finds it inefficient to deny Petitioner relief under Government Code 946.6 in light of Respondent's notice stating that Petitioner's "only possible recourse is ... persuading a court to excuse compliance with the claim requirement." (80 Cal.App.5th at 398–399.)

While

Respondent argues underlying issues of fact relating to the accrual date of Petitioner's claim, the Court finds that Petitioner has exercised reasonable diligence in pursuing his claim, and notes that "a trial court has broad discretion in ruling on a petition for relief from the claim-filing requirement as long as the issue is whether the late claim was presented within a 'reasonable time' not to exceed one year after the accrual of the cause of action." (*County of Los Angeles v. Superior Court (Crystal B., Steven G., Anita G.)* (2001) 91 Cal.App.4th 1303, 1313.) Here, Petitioner submitted his application to file a late claim on 12/4/25, therefore the application was timely under either party's purported accrual date. (Gov. Code § 911.4, subd. (b).)

The Court

agrees with Petitioner that "should Respondents wish to challenge those facts set forth in Petitioner's declaration, they will have ample opportunity to do so following the filing of a Complaint regarding the incident and claims at issue herein." (Reply 2:3–7.) Based on the foregoing, the Court grants Petitioner's petition for relief pursuant to Government Code section 946.6.

CONCLUSION;

The petition is granted. Petitioner to file his complaint with the Court within 30 days.